

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MARVIS JOHNSON,

Plaintiff,

Index No.

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, JASON DENICKER, AND
NYPD DETECTIVE THOMAS DENICKER,

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorneys within twenty (20) days after the services of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
April 7, 2016



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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MARVIS JOHNSON,

Plaintiff,

Index No.

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, JASON DENICKER, AND
NYPD DETECTIVE THOMAS DENICKER,

Defendants.

-----X

Plaintiff Marvis Johnson (hereinafter "Plaintiff"), by his attorneys, Wingate, Kearney & Cullen, LLP, respectfully states and alleges, upon information and belief, as follows:

PARTIES

1. The Plaintiff is and was at all time relevant to this action a resident of the State and City of New York.

2. The Defendant the City of New York (hereinafter "Defendant City of New York") is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. Defendant City of New York is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

3. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers.

4. Defendant City was at all times relevant herein the public employer of the Defendant NYPD Detective Thomas Denicker (hereinafter "Defendant Thomas Denicker").

5. Defendant Thomas Denicker is and was at all times relevant herein duly appointed and acting as officer, servant, employee and agent of the Defendant New York City Police Department (hereinafter "Defendant NYPD"), a municipal agency of Defendant City of New York.

6. At all times relevant herein, Defendant Thomas Denicker was acting under color of the laws, statutes, ordinances, regulations, policies, customs and/or usages of the State of New York and Defendant NYPD, in the course and scope of his duties and functions as officer, agent, servant, and employee of Defendant City of New York, was acting for, and on behalf of, and with the power and authority vested in them by Defendant City of New York and Defendant NYPD, and was otherwise performing and engaging in conduct incidental to the performance of his lawful functions in the course of his duties. Defendant Thomas Denicker is sued individually and in his official capacity.

7. The Defendant Jason Denicker (hereinafter "Defendant Jason Denicker") is and was at all times relevant herein a natural person residing within the State and City of the New York.

NOTICE OF CLAIM

8. On the 30th day of June 2015, the Plaintiff's Notice of Claim and intention to sue was duly served upon and filed with the Office of the Comptroller of the City of New York. Said Notice of Claim was filed within ninety (90) days after the cause of action herein accrued.

9. At least thirty (30) days have elapsed since the demand or claim upon which this action is predicated was presented to Defendant City of New York for adjustment.

10. To date, no answer has been received by the Plaintiff and the Defendant City of New York has neglected and/or refused to make adjustment or payment in response to this claim.

11. This action has been commenced within one year and ninety (90) days after the cause of action accrued.

STATEMENT OF FACTS

12. On May 28, 2015 at 12:30am, at 27-30 42nd Road, Queens, New York, the Plaintiff was physically confronted and harassed by Defendants Jason Denicker and Thomas Denicker, a member of the New York City Police Department, without justification and/or provocation.

13. Upon information and belief, Defendant Thomas Denicker was not at the aforementioned location on assignment, but instead was present for the sole purpose of harassing and physically confronting the Plaintiff. Upon further information and belief, Defendant Thomas Denicker sought to instigate a confrontation with the Plaintiff because the Plaintiff maintained a lawsuit in Supreme Court, Queens County, against Defendant Jason Denicker, Thomas Denicker's brother. The action in Queens County Supreme Court was for a temporary restraining order against Defendant Jason Denicker for physically harassing and threatening the Plaintiff on a previous occasion. Defendant Jason Denicker was and is the boyfriend of Nicole Halton, the Plaintiff's ex-girlfriend.

14. Further, Defendant Thomas Denicker acted to intimidate the Plaintiff, who was a lawful resident of Apartment # 16D at the same location at the relevant time. The Plaintiff is in fear of his physical safety based on a previous threat made by Defendant Jason Denicker against the Plaintiff. Specifically, Defendant Jason Denicker threatened the Plaintiff by stating, "I will split your wig open. I won't do it, but I will have somebody do it for me." Defendant Jason Denicker, during the time plaintiff resided at the property, used

his then and current girlfriend, Nicole Halton, to file false police reports and make a petition to the Queens County Family Court for an Order of protection which was later dismissed.

15. The Plaintiff has made a NYC Civilian Complaint Review Board complaint detailing the incident, claim number 1504479; NYPD internal affairs complaint number 201516122.

16. Following these incidents, the Plaintiff was forced to relocate at a great expense. A claim is made against the City of New York and New York Police Department for assault, harassment, violation of civil rights and racial profiling. Defendant Jason Denicker used building staff and building video surveillance to monitor the plaintiff's whereabouts and to set plaintiff up for possible assault and physical harm.

AS AND FOR A FIRST CAUSE OF ACTION
ASSAULT AND BATTERY
AGAINST DEFENDANT THOMAS DENICKER

17. The Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth at length herein.

18. By the conduct and actions described above, Defendant Thomas Denicker inflicted the torts of assault and battery upon the Plaintiff. The acts and conduct of Defendant Thomas Denicker were the direct and proximate cause of injury and damage to the Plaintiff and violated the Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

19. Defendant Thomas Denicker's acts constituted an assault upon the Plaintiff in that Denicker intentionally attempted to injure plaintiff or commit a battery upon him, and further that Defendant Thomas Denicker's acts represented a grievous affront to the Plaintiff.

20. Defendant Thomas Denicker's acts constituted a battery upon the Plaintiff in that the above described bodily contact was intentional, unauthorized, and grossly offensive in nature.

21. The actions of Defendant Thomas Denicker were intentional, reckless, and unwarranted, and without any just cause or provocation, and Defendant Denicker knew, or should have known, that his actions were without the consent of the Plaintiff.

22. The injuries sustained by the Plaintiff were caused wholly and solely by reason of the conduct described, and the Plaintiff did not contribute thereto.

23. As a direct and proximate result of the foregoing, the Plaintiff was subjected to great physical and emotional pain and humiliation, was deprived of his liberty, and was otherwise damaged and injured. Further, Plaintiff is entitled to injunctive relief, by virtue of an Order requiring the Defendant to keep a reasonable distance from Plaintiff and requiring Defendant to refrain from assault, stalking, harassment, aggravated harassment, menacing, reckless endangerment, intimidation, threats, and communication or any other contact by mail, telephone, email, voicemail, or any other means against the Plaintiff.

AS AND FOR A SECOND CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST DEFENDANT THOMAS DENICKER

24. The Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth at length herein.

25. Defendant Thomas Denicker's conduct in assaulting and harassing the Plaintiff, without provocation or justification, was extreme, outrageous, and utterly intolerable in a civilized community; conduct which exceeded all reasonable bounds of decency.

26. Defendant Thomas Denicker's conduct, described above, was intended to and did cause severe emotional distress to the Plaintiff.

27. The conduct of Defendant Thomas Denicker was the direct and proximate cause of injury and damage to the Plaintiff and violated the Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

28. As a result of the foregoing, the Plaintiff was deprived of his liberty, was subjected to serious physical and emotional pain and suffering, and was otherwise damaged and injured. Further, Plaintiff is entitled to injunctive relief, by virtue of an Order requiring the Defendant to keep a reasonable distance from Plaintiff and requiring Defendant to refrain from assault, stalking, harassment, aggravated harassment, menacing, reckless endangerment, intimidation, threats, and communication or any other contact by mail, telephone, email, voicemail, or any other means against the Plaintiff.

AS AND FOR A THIRD CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
AGAINST DEFENDANT THOMAS DENICKER

29. The Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth at length herein.

30. Defendant Thomas Denicker's conduct, in assaulting and battering the Plaintiff, was careless and negligent as to the emotional health of the Plaintiff, and caused severe emotional distress to the Plaintiff.

31. The acts and conduct of Defendant Thomas Denicker was the direct and proximate cause of injury and damage to the Plaintiff and violated the Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

32. As a result of the foregoing, the Plaintiff was deprived of his liberty, was subjected to serious physical and emotional pain and suffering, and was otherwise damaged and injured. Further, Plaintiff is entitled to injunctive relief, by virtue of an Order requiring the Defendant to keep a reasonable distance from Plaintiff and requiring Defendant to

refrain from assault, stalking, harassment, aggravated harassment, menacing, reckless endangerment, intimidation, threats, and communication or any other contact by mail, telephone, email, voicemail, or any other means against the Plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION
NEGLIGENCE
AGAINST DEFENDANT THOMAS DENICKER

33. The Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth at length herein.

34. Defendant Thomas Denicker, while acting as agent and employee for Defendant City of New York and Defendant NYPD, in his capacity as a NYPD Detective for the City of New York, owed a duty to the Plaintiff to perform his police duties without the use of excessive force. Defendant Thomas Denicker's use of force upon the Plaintiff, when the Plaintiff was unarmed and did not pose a threat of death or grievous bodily injury to Defendant Thomas Denicker or to others constitutes negligence for which Defendant Thomas Denicker is individually liable.

35. Defendant Thomas Denicker's use of force upon the Plaintiff when Defendant Thomas Denicker had no lawful authority to arrest the Plaintiff or to use force against the Plaintiff constitutes negligence for which Defendant Thomas Denicker is individually liable.

36. As a proximate result of Defendant Thomas Denicker's negligent use of excessive force, the Plaintiff sustained physical and emotional pain and suffering, and was otherwise damaged and injured. Further, Plaintiff is entitled to injunctive relief, by virtue of an Order requiring the Defendant to keep a reasonable distance from Plaintiff and requiring Defendant to refrain from assault, stalking, harassment, aggravated harassment, menacing, reckless endangerment, intimidation, threats, and communication or any other contact by mail, telephone, email, voicemail, or any other means against the Plaintiff.

AS AND FOR A FIRST CAUSE OF ACTION
ASSAULT AND BATTERY
AGAINST DEFENDANT JASON DENICKER

37. The Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth at length herein.

38. By the conduct and actions described above, Defendant Jason Denicker inflicted the torts of assault and battery upon the Plaintiff. The acts and conduct of Defendant Jason Denicker were the direct and proximate cause of injury and damage to the Plaintiff and violated the Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

39. Defendant Jason Denicker's acts constituted an assault upon the Plaintiff in that Denicker intentionally attempted to injure plaintiff or commit a battery upon him, and further that Defendant Jason Denicker's acts represented a grievous affront to the Plaintiff.

40. Defendant Jason Denicker's acts constituted a battery upon the Plaintiff in that the above described bodily contact was intentional, unauthorized, and grossly offensive in nature.

41. The actions of Defendant Jason Denicker were intentional, reckless, and unwarranted, and without any just cause or provocation, and Defendant Denicker knew, or should have known, that his actions were without the consent of the Plaintiff.

42. The injuries sustained by the Plaintiff were caused wholly and solely by reason of the conduct described, and the Plaintiff did not contribute thereto.

43. As a direct and proximate result of the foregoing, the Plaintiff was subjected to great physical and emotional pain and humiliation, was deprived of his liberty, and was otherwise damaged and injured. Further, Plaintiff is entitled to injunctive relief, by virtue of an Order requiring the Defendant to keep a reasonable distance from Plaintiff and requiring Defendant to refrain from assault, stalking, harassment, aggravated harassment,

menacing, reckless endangerment, intimidation, threats, and communication or any other contact by mail, telephone, email, voicemail, or any other means against the Plaintiff.

AS AND FOR A SECOND CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST DEFENDANT JASON DENICKER

44. The Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth at length herein.

45. Defendant Jason Denicker's conduct in assaulting and harassing the Plaintiff, without provocation or justification, was extreme, outrageous, and utterly intolerable in a civilized community; conduct which exceeded all reasonable bounds of decency.

46. Defendant Jason Denicker's conduct, described above, was intended to and did cause severe emotional distress to the Plaintiff.

47. The conduct of Defendant Jason Denicker was the direct and proximate cause of injury and damage to the Plaintiff and violated the Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

48. As a result of the foregoing, the Plaintiff was deprived of his liberty, was subjected to serious physical and emotional pain and suffering, and was otherwise damaged and injured. Further, Plaintiff is entitled to injunctive relief, by virtue of an Order requiring the Defendant to keep a reasonable distance from Plaintiff and requiring Defendant to refrain from assault, stalking, harassment, aggravated harassment, menacing, reckless endangerment, intimidation, threats, and communication or any other contact by mail, telephone, email, voicemail, or any other means against the Plaintiff.

AS AND FOR A THIRD CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
AGAINST DEFENDANT JASON DENICKER

49. The Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth at length herein.

50. Defendant Jason Denicker's conduct, in assaulting and battering the Plaintiff, was careless and negligent as to the emotional health of the Plaintiff, and caused severe emotional distress to the Plaintiff.

51. The acts and conduct of Defendant Jason Denicker was the direct and proximate cause of injury and damage to the Plaintiff and violated the Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

52. As a result of the foregoing, the Plaintiff was deprived of his liberty, was subjected to serious physical and emotional pain and suffering, and was otherwise damaged and injured. Further, Plaintiff is entitled to injunctive relief, by virtue of an Order requiring the Defendant to keep a reasonable distance from Plaintiff and requiring Defendant to refrain from assault, stalking, harassment, aggravated harassment, menacing, reckless endangerment, intimidation, threats, and communication or any other contact by mail, telephone, email, voicemail, or any other means against the Plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION
NEGLIGENCE
AGAINST DEFENDANT JASON DENICKER

53. The Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth at length herein.

54. Defendant Jason Denicker's use of force upon the Plaintiff, when the Plaintiff was unarmed and did not pose a threat of death or grievous bodily injury to

Defendant Jason Denicker or to others constitutes negligence for which Defendant Jason Denicker is individually liable.

55. As a proximate result of Defendant Jason Denicker's negligent use of excessive force, the Plaintiff sustained physical and emotional pain and suffering, and was otherwise damaged and injured. Further, Plaintiff is entitled to injunctive relief, by virtue of an Order requiring the Defendant to keep a reasonable distance from Plaintiff and requiring Defendant to refrain from assault, stalking, harassment, aggravated harassment, menacing, reckless endangerment, intimidation, threats, and communication or any other contact by mail, telephone, email, voicemail, or any other means against the Plaintiff.

AS AND FOR A FIRST CAUSE OF ACTION
RESPONDENT SUPERIOR LIABILITY OF
THE CITY OF NEW YORK FOR STATE LAW VIOLATIONS

56. The Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth at length herein.

57. The conduct of Defendant Thomas Denicker alleged herein occurred while he was employed as an Undercover New York City Detective, in and during the course and scope of his duties and functions as a New York City police officer, and while he was acting as an agent, officer, servant and employee of Defendant City of New York. As a result, Defendant City of New York is liable to plaintiff pursuant to the state common law doctrine of respondent superior.

AS AND FOR A SECOND CAUSE OF ACTION
NEGLIGENT SUPERVISION, RETENTION AND TRAINING
AGAINST DEFENDANT CITY OF NEW YORK

58. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth at length herein.

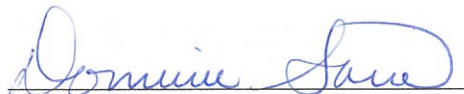
59. Defendant City of New York negligently trained, retained, and supervised Defendant Thomas Denicker. The acts and conduct of Defendant Thomas Denicker were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. As a result of the foregoing, the Plaintiff was deprived of his liberty, was subjected to great physical and emotional pain and suffering, and was otherwise damaged and injured.

WHEREFORE, the Plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages in the amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem just and proper.

Dated: Brooklyn, New York
April 7, 2016



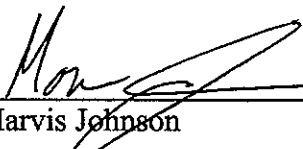
Dominic Sarna
Wingate, Kearney & Cullen, LLP
Attorneys for the Plaintiff
45 Main Street, Suite 1020
Brooklyn, New York 11201
(718) 852-5900

VERIFICATION

STATE OF NEW YORK :
COUNTY OF Kings : SS.:

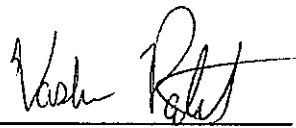
Marvis Johnson, being duly sworn deposes the following statements
are true under the penalties of perjury:

I am the Plaintiff in this proceeding. I have read the Verified Complaint and know the
contents to be true from my own knowledge, except as to those matters stated on information and
belief, and as to those matters I believe them to be true.



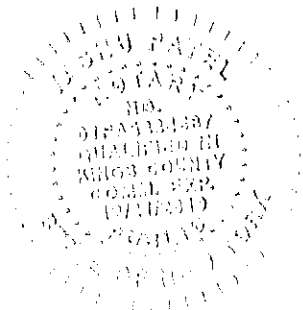
Marvis Johnson

Sworn to before me this
6th day of April, 2016.



Notary Public

VASHU PATEL
NOTARY PUBLIC-STATE OF NEW YORK
NO. 01PA6334587
QUALIFIED IN KINGS COUNTY
MY COMMISSION EXPIRES 12-21-2019



**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

MARVIS JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, JASON DENICKER, AND NYPD
DETECTIVE THOMAS DENICKER,

Defendants.

SUMMONS AND COMPLAINT

Index Number:

WINGATE, KEARNEY & CULLEN, LLP
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